

Primary Source Reading: The Code of Hammurabi

Philosophy Honors: Ethics / Lesson 1.02 — The Universal Witness Translated by Robert Francis Harper (1904)

Before you read: The Code of Hammurabi is one of the oldest surviving law codes in the world, inscribed on a stone pillar in Babylon around 1750 BCE. As you read, note how Hammurabi grounds his authority to make law — where does he say the law comes from? — and compare the specific penalties below to how you would expect justice to be administered today.

The King's Mandate

When the lofty Anu, king of the Anunnaki, and Bel, lord of heaven and earth, he who determines the destiny of the land, committed the rule of all mankind to Marduk... Anu and Bel called me, Hammurabi, the exalted prince, the worshiper of the gods, to cause justice to prevail in the land, to destroy the wicked and the evil, to prevent the strong from oppressing the weak, to go forth like the Sun over the Black Head Race, to enlighten the land and to further the welfare of the people.

Laws Against False Accusation

- § 1. If a man bring an accusation against a man, and charge him with a (capital) crime, but cannot prove it, he, the accuser, shall be put to death.
- § 3. If a man, in a case (pending judgment), bear false (threatening) witness, or do not establish the testimony that he has given, if that case be a case involving life, that man shall be put to death.

An Eye for an Eye

- § 196. If a man destroy the eye of another man, they shall destroy his eye.
- § 197. If one break a man's bone, they shall break his bone.
- § 198. If one destroy the eye of a freeman or break the bone of a freeman, he shall pay one mana of silver.
- § 199. If one destroy the eye of a man's slave or break a bone of a man's slave he shall pay one-half his price.
- § 200. If a man knock out a tooth of a man of his own rank, they shall knock out his tooth.
- § 201. If one knock out a tooth of a freeman, he shall pay one-third mana of silver.

The Epilogue's Purpose

The righteous laws, which Hammurabi, the wise king, established and (by which) he gave the land stable support and pure government... that the strong might not oppose the weak, and that they should give justice to the orphan and the widow... Let any oppressed man, who has a cause, come before my image as king of righteousness! Let him read the inscription on my monument! Let him give heed to my weighty words! And may my monument enlighten him as to his cause and may he understand his case! May he set his heart at ease!

After you read: Notice that Hammurabi's laws are not uniform — the penalty for injuring a freeman differs from the penalty for injuring a slave, and both differ from the penalty for injuring an equal. As you fill in your comparison chart, note this carefully: what is the *stated* purpose of the code (protecting the weak, giving justice to the orphan and widow), and does the actual content of the laws match that stated purpose in every case?